

25STCV19352 25STCV19352

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-28

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Case Number: 25STCV19352 Hearing Date: July 28, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

JANIE ZAMORA

vs.

NISSAN NORTH AMERICA, INC.

Case

No.: 25STCV19352

Hearing Date: July 27, 2026

Plaintiff's

motion to compel Defendant Nissan's compliance pursuant to CCP section 871.26
is DENIED.

On 6/30/2025,

Plaintiff Zanie Zamora (Plaintiff) filed suit against Nissan North America,
Inc. and HGREG Nissan Buena Park alleging violations of the Song-Beverly
Warranty Act.

On 4/8/2026, Plaintiff

moved to compel Defendant Nissan North America, Inc.'s (Nissan or Defendant) compliance pursuant to CCP section 871.26.

Discussion

Plaintiff

moves for an order for compliance requiring Defendant to provide the complete production of documents and written disclosure of information required under Code of Civil Procedure subsections 871.26, subdivisions (b) and (h).

The enactment

of Assembly Bill 1755 was codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure (CCP) (herein, Chapter 12), which went into effect 1/1/2025. (See CCP § 871.20, et seq.) In passing Assembly Bill 1755, the legislature enacted provisions that identified a series of written disclosures that a plaintiff must provide to all other parties within sixty days of the filing of the responsive pleading. (Code. Civ. Proc., § 871.26, subd. (g).)

Furthermore, the Legislature identified a series of seven discrete categories of documents that a plaintiff must also produce within sixty days of the filing the responsive pleading: (1) Sales or lease agreement. (2) Copy of current registration. (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements. (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found. (5) Documents detailing all underlying claimed incidental damages. (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession. (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request. (Code Civ. Proc., § 871.26, subd. (f).)

In

opposition, Defendant contends that there is nothing to compel as Nissan has made all code-compliant disclosure, including:

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No. A – 2020 Nissan Sentra Owner's

Manual and Maintenance Information Booklet & Supplement (NNA Zamora, J_AB1755_000001-000561);

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No. B – 2020 Nissan Warranty

Information Booklet & Supplement (NNA_Zamora, J_AB1755_000562-000803);

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No. C – Warranty Information Printout

(NNA Zamora, J_AB1755_000804);

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No. D – Product Brochure for 2020

Nissan Sentra vehicles (NNA Zamora, J_AB1755_000805-000812);

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No. E – Factory Invoice (NNA Zamora,

J_AB1755_000813-000815);

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No. F – Monroney Label (Window Sticker)

(NNA Zamora, J_AB1755_000816);

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No. G – Vehicle Details & Service

History (NNA Zamora, J_AB1755_000817-000820);

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No. H – Repair Orders (NNA Zamora,

J_AB1755_000821-000867);

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No. I – DBS National Service History

(NNA Zamora, J_AB1755_000868-000907);

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No. J – Warranty Case Information (NNA Zamora,

J_AB1755_000908-000915);

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No. K – Consumer Affairs File (NNA Zamora,

J_AB1755_000916-000933 – produced pursuant to protective order);

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No. L – Technical Service Bulletins
and/or Recalls for 2020 Nissan Sentra vehicles (NNA Zamora,
J_AB1755_000934-001507);

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No. M – Service Manual for 2020 Nissan
Sentra vehicles (NNA Zamora, J_AB1755_001508); and

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No. AA – Nissan Assurance Products
Resource Manual (APRMs) (NNA_CA_000001- 000397; NNA_CA_000698-001362;
NNA_CA_001384-002051; NNA_CA_002672- 003346 – produced pursuant to protective
order)

CCP §

871.26(h) specifies seventeen discrete categories of documents that must be
disclosed automatically. The statute is categorical and content-based – not
system-based. The Court agrees that Nissan's production is sufficient, and
there is nothing additional to compel.

Based on the
foregoing, Plaintiff's motion for an order for compliance requiring Nissan's
compliance is denied.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at
by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.